

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR JULY 10, 2026 AT 8:30 A.M.**

These are the tentative rulings for the **FRIDAY, JULY 10, 2026, at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., THURSDAY, JULY 9, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: Parties may request a remote appearance for oral argument. (Placer Court Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **COMMISSIONER CHRISTINE S. DEHR**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 1** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0087617 JPMORGAN CHASE v. ALFONSO, RYAN

Plaintiff JPMorgan Chase Bank, N.A.'s Motion to Vacate Dismissal and Enter Judgment

Ruling on Request for Judicial Notice

The request is granted pursuant to Evidence Code section 452.

Ruling on Motion

The unopposed motion is granted. The dismissal entered on March 24, 2025 is vacated.

Judgment is entered against defendant Ryan Alfonso in the amount of \$7,672.00.

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2. M-CV-0089166 AMERICAN EXPRESS NATL BANK v. JAY, DIANE

Plaintiff American Express National Bank's Motion to Vacate Conditional Dismissal and for Entry of Judgment

The unopposed motion is granted. The dismissal entered on July 21, 2025 is vacated.

Judgment is entered against defendant Diane Jay in the amount of \$34,160.88, which includes damages in the amount of \$33,650.88 plus costs of \$510.00.

3. M-CV-0092628 HIGHLAND CREEK BY VINTAGE v. SBABO, SHERECE

Defendant's Amended Motion for Attorney's Fees and Defendant's Motion for Sanctions

The appearances of the parties are required for the hearings on both motions.

4. M-CV-0096906 ALESSANDRI, ERNEST v. CHASTAIN, CHRISTY

Defendants Christy Chastain and Brandon Jensen's Demurrer to the First Amended Complaint (FAC)

The demurrer is overruled. A review of the allegations within the FAC show that the allegations are sufficiently pleaded to allege a cause of action for unlawful detainer against the defendants.

Defendants shall file and serve their answer or general denial by July 15, 2026.

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5. M-CV-0097627 SFC PROMENADE PARK INVEST v. CERVANTES, NATALIE

This tentative ruling is issued by **the Honorable Trisha J. Hirashima**. If oral argument is requested, it will be heard on **Tuesday, July 14, at 8:30 a.m., in Department 32 before the Honorable Trisha J. Hirashima**.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendants' Motion to Quash Service of Summons

Defendants move to quash service of summons. On a prior date, plaintiff filed declarations of due diligence, and the court granted plaintiff's application allowing posting and mailing of the summons and complaint. Defendants' motion to quash service of summons is denied without prejudice as it is premature. Plaintiff has not yet filed its proofs of service declaring completed service of the summons and complaint. Thus, the court is unable to determine the alleged service was proper.

6. M-CV-0097944 DAY, BLISS v. MAIA, TAYLOR

This tentative ruling is issued by **the Honorable Trisha J. Hirashima**. If oral argument is requested, it will be heard on **Tuesday, July 14, at 8:30 a.m., in Department 32 before the Honorable Trisha J. Hirashima**.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendants' Motion to Quash Service of Summons

Defendant moves to quash service of summons. Plaintiff opposes the motion.

Plaintiff's request for judicial notice is granted.

Background

On December 1, 2025, defendant entered into a written tenancy agreement with plaintiff. Pursuant to the parties' agreement, defendant agreed to rent "room 2" within the subject property for a term of six (6) months. Pursuant to the lease

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agreement, and documents thereto, the monthly base rent payment for the lease of the subject property was \$850.00 per month. (See Pl. Compl. ¶ 6.)

On January 26, 2026, plaintiff served upon defendant, and all other adult occupants in possession, a written document entitled “NOTICE OF TERMINATION OF TENANCY NOTICE OF NON-RENEWAL/NOTICE TO VACATE,” providing defendant several months advance notification that his tenancy would not be renewed and the tenancy would cease, effectively, at the end of the six (6) month term on May 31, 2026. This notice also advised that “[t]he landlord is withdrawing this property from the rental housing market” and stated that “payment of rent for the final month of the tenancy is waived.” (See Pl. Compl. ¶¶ 9-10, Pl. Exhs. 2 & 3.)

Plaintiff alleges defendant remained in possession of the subject property beyond the tenancy period. (See Pl. Compl. ¶¶ 9-10, Pl. Exhs. 2 & 3.) On June 2, 2026, plaintiff commenced this action. See *id.*

Analysis

Defendant makes the following arguments in support of the motion to quash: 1. the tenancy is subject to the Tenant Protection Act; 2. defendant occupied the premises for more than twelve months; 3. plaintiff relied upon a notice of non-renewal rather than a statutory just-cause termination; 4. the complaint inconsistently alleges both an at-fault eviction and a no-fault non-renewal theory; and 5. the complaint therefore fails to state a cause of action for unlawful detainer and is uncertain. (Def. Mot. Quash at 5.)

In defendant’s motion, defendant argues for protection under the Tenant Protection Act as a tenant who has occupied the premises for more than twelve months. However, in defendant’s motion, defendant also states that the tenancy began in December 2025. (Def. Mot. Quash at 2.) Therefore, defendant does not qualify for protection pursuant to California Civil Code section 1946.2 subdivision (a), “[n]otwithstanding any other law, after a tenant has continuously and lawfully occupied a residential real property for 12 months, the owner of the residential real property shall not terminate a tenancy without just cause, which shall be stated in the written notice to terminate tenancy.” Cf. *Sandhu v. Lockheed Missiles & Space Co.* (1994) 26 Cal.App.4th 846, 859 (holding plaintiff’s failure to check the proper box does not preclude bringing suit).

Moreover, plaintiff could rely on a notice of non-renewal under Code Civ. Proc., § 1161:

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A tenant of real property, for a term less than life, or the executor or administrator of the tenant's estate heretofore qualified and now acting or hereafter to be qualified and act, is guilty of unlawful detainer:

When the tenant continues in possession, in person or by subtenant, of the property, or any part thereof, after the expiration of the term for which it is let to the tenant; provided the expiration is of a nondefault nature however brought about without the permission of the landlord, or the successor in estate of the landlord, if applicable; including the case where the person to be removed became the occupant of the premises as a servant, employee, agent, or licensee and the relation of master and servant, or employer and employee, or principal and agent, or licensor and licensee, has been lawfully terminated or the time fixed for occupancy by the agreement between the parties has expired

(Code Civ. Proc. §1161, subd. (1).)

Defendant argues the complaint inconsistently alleges both an at-fault eviction and a no-fault non-renewal theory; and the complaint therefore fails to state a cause of action for unlawful detainer and is uncertain. (Def. Mot. Quash at 5.) As plaintiff alleges sending notice of non-renewal and defendant failed to vacate at the end of the tenancy, this would fall under the "at fault" provision of Code Civ. Proc. §1161, subd. (1), as defendant is alleged to meet the definition of an unlawful detainer.

Based on the foregoing, defendant's motion to quash is denied.

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7. M-CV-0098086 PARK WEST APTS v. PARKER, CHRISTOPHER

Defendant Christopher Parker's Demurrer to the Complaint

The demurrer is overruled. A review of the allegations within the complaint show that the allegations are sufficiently pleaded to allege an unlawful detainer cause of action against defendant.

Defendant shall file and serve an answer or general denial by July 15, 2026.

8. S-CV-0049529 LOS LAGOS ESTATES HOA v. LE GARDEN HA

The reserved hearings on the motion to dissolve preliminary injunction and motion to determine prevailing party are dropped from calendar. No moving papers were filed with the court as to either motion.

9. S-CV-0049615 VARGAS, ANTHONY v. JESSEN, PAUL

Plaintiff's Motion for Sanctions Against Justin Ward, Esq. and Lindsay Goulding, Esq.

The appearances of the parties are required for the hearing.

10. S-CV-0050898 JARRETT, JENNIFER v. SCHUMACHER, JOAN

William Brelsford, Jr., Esq.'s Motion to be Relieved as Counsel for Plaintiffs

The motion is dropped from calendar. A substitution of attorney was filed for plaintiff Jennifer Jarrett on May 22, 2026. A substitution of attorney was also filed for plaintiff John Jarrett on May 22, 2026.

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11. S-CV-0051334 POMEROY, DANIELA v. VERMA, GAUTAM

Defendant Granite Construction Co.'s Motion to Compel Defendant Gautam Verma's Responses to Special Interrogatories, Set One

Defendants Lennar Homes of California, LLC and Sierra Vista Communities, LLC's Joinder to the Motion

The court notes the joinder filed by the defendants. However, the court does not afford defendants any affirmative relief as the discovery propounded by the moving party was propounded solely as to defendant Granite Construction Co., not jointly propounded special interrogatories.

Ruling on Motion

The unopposed motion is granted.

Defendant Gautam Verma shall provide verified responses, without objections, to special interrogatories, set one, by July 20, 2026.

Defendant Granite Construction Co.'s Motion to Compel Defendant Gautam Verma's Responses to Request for Production of Documents (RPDs), Set One

Defendants Lennar Homes of California, LLC and Sierra Vista Communities, LLC's Joinder to the Motion

The court notes the joinder filed by the defendants. However, the court does not afford defendants any affirmative relief as the discovery propounded by the moving party was propounded solely as to defendant Granite Construction Co., not jointly propounded RPDs.

Ruling on Motion

The unopposed motion is granted.

Defendant Gautam Verma shall provide verified responses and responsive documents, without objections, to RPDs, set one, by July 20, 2026.

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11. S-CV-0051334 POMEROY, DANIELA v. VERMA, GAUTAM

Defendant Granite Construction Co.'s Motion to Compel Defendant Gautam Verma to Deposition

Defendants Lennar Homes of California, LLC and Sierra Vista Communities, LLC's Joinder to the Motion

The court notes the joinder filed by the defendants. However, the court does not afford defendants any affirmative relief as the deposition notice was propounded solely by the moving party.

Ruling on Motion

The unopposed motion is granted.

Defendant Gautam Verma shall appear for a deposition on a date, time, and at a location as noticed by defendant Granite Construction Co.

Defendant Granite Construction Co.'s Motion to Compel Defendant Sodhi Transportation, Inc.'s Responses to Special Interrogatories, Set One

Defendants Lennar Homes of California, LLC and Sierra Vista Communities, LLC's Joinder to the Motion

The court notes the joinder filed by the defendants. However, the court does not afford defendants any affirmative relief as the discovery propounded by the moving party was propounded solely as to defendant Granite Construction Co., not jointly propounded special interrogatories.

Ruling on Motion

The unopposed motion is granted.

Defendant Sodhi Transportation, Inc. shall provide verified responses, without objections, to special interrogatories, set one, by July 20, 2026.

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11. S-CV-0051334 POMEROY, DANIELA v. VERMA, GAUTAM

Defendant Granite Construction Co.'s Motion to Compel Defendant Sodhi Transportation, Inc.'s Responses to Request for Production of Documents (RPDs), Set One

Defendants Lennar Homes of California, LLC and Sierra Vista Communities, LLC's Joinder to the Motion

The court notes the joinder filed by the defendants. However, the court does not afford defendants any affirmative relief as the discovery propounded by the moving party was propounded solely as to defendant Granite Construction Co., not jointly propounded RPDs.

Ruling on Motion

The unopposed motion is granted.

Defendant Sodhi Transportation, Inc. shall provide verified responses and responsive documents, without objections, to RPDs, set one, by July 20, 2026.

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12. S-CV-0051496 THE STANDARD FIRE INS CO v. JS WEST & CO

Defendant JS West and Company's Motion for Leave to File a Cross-Complaint

The motion is continued to **Friday, July 17, 2026 at 8:30 a.m. in Department 1.**

The moving papers do not include a copy of the proposed cross-complaint that is the subject of the motion. The matter is continued to afford defendant an opportunity to file a copy of the proposed cross-complaint with the court.

Any supplemental declaration, which should include a copy of the proposed cross-complaint, shall be electronically filed and served by 2:00 p.m. on Tuesday, July 14, 2026.

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13. S-CV-0051579 CARTER, WILLIAM v. SHAHI, KAVIAN

Defendant Sutter Roseville Medical Center's Motion to Dismiss Action

Defendant Kavian Shahi's Joinder to the Motion

The court acknowledges defendant's joinder to the pending motion and request for affirmative relief.

Ruling on Motion

Defendant's current motion seeks dismissal based upon plaintiffs' failure to comply with the court's prior discovery orders. Put another way, defendant seeks an order for terminating sanctions against plaintiffs in which defendant Kavian Shahi joins.

Terminating sanctions may be imposed to either (1) strike the entirety or a part of a pleading; (2) stay the proceedings until the party obeys a discovery order; (3) dismiss all or part of an action; or (4) render the entry of a default judgment. (Code of Civil Procedure section 2023.030(d).) The court also has inherent authority to impose terminating sanctions based upon discovery abuses. (*Department of Forestry & Fire Protection v. Howell* (2017) 18 Cal.App.5th 154, 197, disapproved on other grounds in *Presbyterian Camp and Conference Centers, Inc. v. Superior Court* (2021) 12 Cal.5th 493.) The issuance of terminating sanctions, however, is an extreme remedy. The dismissal of an action is a drastic sanction that is only applied after a party has had an opportunity to comply with a court order yet still fails to do so. (see *Ruvalcaba v. Government Employees Ins. Co.* (1990) 222 Cal.App.3d 1579, 1581.) The totality of the circumstances surrounding the discovery violations are considered when ordering terminating sanctions: (1) whether the party's conduct was willful; (2) the detriment to the propounding party; and (3) the number of formal and informal attempts to obtain discovery. (*Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390.)

In this instance, plaintiffs have failed to comply with the court's prior discovery order entered on March 24, 2026. The circumstances in this case, however, are such that plaintiffs' prior counsel - and father - was ill and ultimately passed away sometime in 2025. To reiterate, the purpose of discovery sanctions is to prevent abuse of the discovery process and correct problems presented. (*Do v. Superior Court* (2003) 109 Cal.App.4th 1210, 1213-1214.) It is not a weapon to provide for punishment, forfeiture, or avoid of trial on the merits. (*Ibid.*) Considering the totality of the circumstances and on balance, the issuance of terminating sanctions at this juncture is too extreme a sanction. Nonetheless, the court advises plaintiffs that the continued

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13. S-CV-0051579 CARTER, WILLIAM v. SHAHI, KAVIAN

failure to comply with discovery obligations may result in the court issuing more extreme sanctions, which include the issuance of terminating sanctions. For the foregoing reasons, the motion is denied without prejudice.

Defendant Kavian Shahi's Motion to Continue Mandatory Settlement Conference, Civil Trial Conference, and Jury Trial Dates

The motion is granted.

The jury trial in the matter is continued to **Monday, August 9, 2027 at 8:30 a.m. in a department to be assigned**. The parties may contact Master Calendar/Jury Services not earlier than the Friday prior to trial to obtain their department assignment.

The civil trial conference (CTC) is continued to **Friday, July 30, 2027 at 8:30 a.m. in Department 3**. The parties are referred to the Placer Court Local Rules for more information regarding the documentation preparation requirements for the CTC.

The mandatory settlement conference is continued to **Wednesday, July 21, 2027 at 8:30 a.m. in Department 6**. The parties shall report directly to Department 6 located at the Historic Auburn Courthouse.

All trial-related deadlines shall coincide with the continued trial date.

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14. S-CV-0052009 HILL, JACOB v. KELLER WILLIAMS REALTY

The motion to set aside default judgment is continued to **August 18, 2026 at 8:30 a.m.**
in **Department 32** to be heard by the **Honorable Leon A. Dixon**.

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15. S-CV-0053865 NOOR, MAHE v. CABRERA, MIGUEL

Plaintiffs' Motion for Order that Matters in Requests for Admission be Admitted and Sanctions

The motion is denied. Defendant Rigoberto Rios has demonstrated substantially compliant responses to the requests for admission were provided to plaintiffs prior to the hearing date. (see Kramer declaration, Exhibit A.)

The request for sanctions is granted. (Code of Civil Procedure section 2033.280(c).) Sanctions in the amount of \$1,560.00 are imposed upon defendant Rigoberto Rios and defendant's counsel, jointly and severally.

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16. S-CV-0054129 FAQURZADEH, NABILA v. CSAA INS EXCHANGE

This tentative ruling is issued by the **Honorable Trisha J. Hirashima**.

The motion to compel arbitration is continued to **August 18, 2026 at 8:30 a.m. in Department 32** to be heard by the **Honorable Trisha J. Hirashima**.

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17. S-CV-0055995 PANASYUK, BENJAMIN v. COUNTY OF PLACER

Defendant City of Folsom's Demurrer to the First Amended Complaint (FAC) and Motion to Strike the FAC

The demurrer and motion to strike are continued to **July 24, 2026 at 8:30 a.m. in Department 1** pursuant to the joint stipulation and order entered on July 7, 2026.

18. S-CV-0057304 IRPO KHLOE ROMIG-BARNES

Petition for Approval of Minor's Compromise Claim for Minor Khloe Romig-Barnes

The petition is granted as prayed.

19. S-CV-0057396 IRPO QUINN CLOVER

Petition for Approval of Minor's Compromise Claim for Minor Wes Clover

The petition is granted as prayed.

20. S-CV-0057857 HYALITE INVEST v. J&M HLDGS

Plaintiff's OSC re Preliminary Injunction

The appearances of the parties are required for the hearing.

21. S-CV-0057996 BAINS, AJAYKARAN v. SANDHER, MANJIT

Plaintiffs' OSC re Preliminary Injunction

The appearances of the parties are required for the hearing.

22. T-CV-0002835 IRPO LAUREN HELWIG

Petition for Relief from Government Claim Filing Requirements

The appearances of the parties are required for the hearing.

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23. T-CV-0002837 IRPO LAUREN HELWIG

Petition for Relief from Government Claim Filing Requirements

The appearances of the parties are required for the hearing.

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